

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Jeremy Wiggins,

: Index Number:
Date Purchased:
: Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Scott Fiske, Shield 13610 of the 47 Precinct, :
Police Officer John Londono, Shield 20603 of the :
47 Precinct, Detective Jeremiah Williams, Shield 5408 of :
the 47 Precinct, :: Plaintiff's residence is:
3457 Westchester Avenue
: Bronx, NY 10469

Defendants

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose and Plaintiffs reside in Bronx County.

Dated: October 12, 2021
 New York, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

Police Officer Scott Fiske, Shield 13610 of the 47 Precinct,

Police Officer John Londono, Shield 20603 of the 47 Precinct,

Detective Jeremiah Williams, Shield 5408 of the 47 Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Jeremy Wiggins,	:	
	:	
Plaintiffs	:	VERIFIED COMPLAINT
	:	
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Scott Fiske, Shield 13610 of the 47 Precinct,	:	
Police Officer John Londono, Shield 20603 of the	:	
47 Precinct, Detective Jeremiah Williams, Shield 5408 of	:	
the 47 Precinct,	:	
	:	
Defendants	:	
-----X		

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Jeremy Wiggins (hereinafter referred to as "WIGGINS") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Scott Fiske, Shield 13610 of the 47 Precinct (hereinafter referred to as "FISKE") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Police Officer John Londono, Shield 20603 of the 47 Precinct (hereinafter referred to as "LONDONO") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Police Officer Jeremiah Williams, Shield 20603 of the 47 Precinct (hereinafter referred to as "WILLIAMS") was employed by the New York City Police Department.
5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
7. On or about March 1, 2021 and again on March 10, 2021 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
8. That on or about June 10, 2021, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees.
9. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
10. That on or about July 28, 2020 at approximately 2:00 AM in the vicinity of 1429 Hicks Street, Bronx, NY, Plaintiff was standing outside of his car looking at his phone when he was stopped, handcuffed and arrested by FISKE and LONDONO.
11. That at no time had Plaintiff been operating a motor vehicle.
12. That at no time had Plaintiff been in possession of marijuana.

13. That after Plaintiff was arrested, he was transported to the 47 precinct.
14. That while at the 47 precinct, Plaintiff was informed that there was a warrant for his arrest in relation to an incident that occurred on November 5, 2019 at approximately 6:10 PM in the vicinity of 3450 Kingsland Avenue, Bronx, NY.
15. That WILLIAMS claimed he observed, on November 5, 2019 at approximately 6:10 PM in the vicinity of 3450 Kingsland Avenue, Bronx, NY, Plaintiff in possession of a loaded gun.
16. That at no time on November 5, 2019 did Plaintiff possess a loaded gun.
17. Despite having not engaged in any criminal activity on July 28, 2020 or on November 5, 2019, Plaintiff was strip searched while at the 47 precinct.
18. That while Plaintiff was inside of the 47 precinct, Plaintiff was held in a holding cell occupied with other males for several hours.
19. That after several hours Plaintiff was removed to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY.
20. That while Plaintiff was held at Bronx County Central Booking, he was held in a cell with other makes for several hours.
21. That on or about July 29, 2020 Plaintiff was arraigned on docket CR-010634-20BX for Aggravated Unlicensed Operation of a Motor Vehicle, Unlawful Possession of Marijuana and related offenses and docket CR-010635-20BX for Criminal Possession of a Weapon in the Second Degree and related offenses.
22. That at the arraignment, bail was set and Plaintiff was remanded to the custody of the New York City Corrections Department until was his bail was paid several hours later.

23. That on and between July 29, 2020 and March 10, 2021 Plaintiff made several court appearances until the cases were each dismissed upon the application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

24. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 23, as if more fully stated herein at length.

25. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

26. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

27. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

28. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

29. That as a result of the Defendants' actions, Plaintiff missed several days from work.

30. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth

Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

33. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and

deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

38. That during the pendency of the cases, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

39. That during the pendency of the cases FISKE and LONDONO persisted in the allegation that Plaintiff was operating a motor vehicle when they knew he had not. Plaintiff is thus entitled to compensatory and exemplary damages.

40. That during the pendency of the cases FISKE and LONDONO persisted in the allegation that Plaintiff was in possession of marijuana when they knew he had not. Plaintiff is thus entitled to compensatory and exemplary damages.

41. That during the pendency of the cases WILLIAMS persisted in the allegation that Plaintiff was in possession of a loaded weapon when they knew he had not. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

42. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. At all times pertinent hereto, FISKE, LONDONO and WILLIAMS were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

44. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FISKE, LONDONO and WILLIAMS committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

45. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

47. That the City of New York and New York City Police Department knew that FISKE had at least one (1) Civilian Complaint Review Board complaint for physical force and continued to employ him.

48. That the City of New York and New York City Police Department knew that FISKE had at least one (1) prior Civilian Complaint Review Board complaint for physical force and yet, they continued to employ him.

49. That the City of New York and New York City Police Department knew that LONDONO had at least fourteen (14) prior Civilian Complaint Review Board complaints, one (1) of which was substantiated for an unlawful vehicle search and yet, they continued to employ him.

50. That the City of New York and New York City Police Department knew that WILLIAMS had at least sixty (60) prior Civilian Complaint Review Board complaints, five (5) of which were substantiated and yet they continued to employ him.

51. That the City of New York and New York City Police Department knew that WILLIAMS had at least thirteen (13) prior lawsuits for false arrest, malicious prosecution and violations of constitutional rights, under the following cases; Raymond Chavannes v. City of New York et al, 14CV00102, Southern District of New York, Alecia Rumph v. City of New York et al, 15CV08749, Southern District of New York, Dujion Hall v. City of New York et al, 021098/2016E Supreme Court Bronx County, Sheldon Edwards v. City of New York et al, 302990/2016E, Carletto Dwayne Wayne Allen v. Jeremiah Williams, 16CV03403 Southern District of New York, Cameron Hansen v. City of New York, 17CV06326 Southern District of New York, Calvert Hibbert v. City of New York et al, 18CV01649 Southern District of New York, Tyrone Naraine v. City of New York et al, 026541/2018E Supreme Court Bronx County, Simon Irvin v. City of New York et al, 033355/2018E Supreme Court Bronx County, Shawn Wint v. Jeremiah Williams, 024359/2018E, Supreme Court Bronx County, Jamare Graham v. City of New York et al, 025225/2019E Supreme Court Bronx County and Marquel Brown v. City of New York et al, 032253/2019E Supreme Court Bronx County. Despite such, the City of New York and New York City Police Department continued to employ WILLIAMS.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

52. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

54. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

____ *Jason Steinberger* _____
Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: June 27, 2016

Jason Steinberger _____
Jason A. Steinberger